

Philippines 2024 Human Rights Report

Executive Summary

During the year there were key developments in the human rights situation in the Philippines with respect to judicial independence and integrity.

Politically motivated charges against Nobel Peace Prize recipient Maria Ressa and former senator and human rights advocate Leila de Lima were dismissed. The Philippine Supreme Court ruled that “red tagging” – the practice of accusing an individual of being a communist or a member or supporter of an armed insurgent group – constituted a threat to the life, liberty, and security of the individual. Despite these and other positive developments, the overall human rights situation in the country did not change in a clearly sustainable and systematic way.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; disappearances; torture or cruel, inhuman or degrading treatment or punishment; arbitrary arrest or detention; serious abuses in a conflict; unlawful recruitment or use of child soldiers by terrorists and groups in rebellion against the government; serious restrictions on freedom of expression and media freedom, including violence and threats of violence; and threats and violence against labor activists.

The government investigated and prosecuted those responsible for some

high-profile human rights abuses and some cases of abuse by security forces and their affiliated paramilitary forces. Concerns regarding police impunity remained, given reports of extrajudicial killings and other abuses by police. Significant concerns also persisted regarding impunity for other security forces and civilian national and local government officials due to limited prosecution for past and present abuses.

Muslim separatists, communist insurgents, and terrorist groups attacked government security forces and civilians, displacing civilians and resulting in the deaths of security force members and civilians. Terrorist organizations also engaged in kidnappings for ransom, bombings of civilian targets, beheadings, and the unlawful recruitment or use of child soldiers in combat or auxiliary roles. These actions were at times investigated and prosecuted, although there were allegations that some charges were leveled for political reasons.

Section 1. Life

a. Extrajudicial Killings

Extrajudicial killings – committed largely by police but also by other security forces – remained a problem, although the numbers declined in comparison with previous years. Accountability for those who committed extrajudicial killings during the past decade was limited. There were only four convictions for such killings that occurred during the Duterte

administration's "war on drugs."

There were numerous reports of arbitrary or unlawful killings by police in connection with antidrug operations. The Marcos administration refocused the antidrug campaign – which began under the Duterte administration – towards treatment and rehabilitation, due process, and rule of law-based investigations. DAHAS PH, a research program of the University of the Philippines-Diliman, reported 266 drug-related deaths from January to August, of which DAHAS PH estimated 30 percent were by police and other security forces engaged in antidrug operations. Some portion of deaths that occurred in operations conducted by police and other security forces was assumed to be extrajudicial.

The Philippine National Police's (PNP) Internal Affairs Service and other government bodies, including the Armed Forces of the Philippines (AFP) unit charged with monitoring human rights violations by members of the military, the Center for Law of Armed Conflict, and the National Bureau of Investigation, investigated whether security force killings were justified.

The Commission on Human Rights (CHR), an independent government ombudsman's office constitutionally responsible for investigating possible human rights violations, investigated 32 new complaints of alleged extrajudicial or politically motivated killings through July. The cases involved 43 victims and were allegedly perpetrated by PNP personnel in 11 cases, members of the military in three, and armed groups in three others. The

commission also investigated 10 specifically drug-related extrajudicial killings with 10 victims, and suspected PNP involvement in nine of these complaints.

In February a Navotas local court convicted five of six police officers involved in the August 2023 killing of Jemboy Baltazar in Navotas City. The officers failed to issue a warning before firing and had their body cameras turned off, both violations of regulations. One officer was convicted of homicide and sentenced to four-to-six years in prison. Four others were sentenced to four months in prison each for the illegal discharge of firearms. One officer was acquitted.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. Freedom of personal or private expression was generally respected, but self-censorship was common. Threats by government, allied groups,

and powerful individuals against journalists, media organizations, government critics, and others continued.

Reporters Without Borders's 2024 *World Press Freedom Index* noted government-led targeted attacks and harassment against journalists continued and cited the growing concentration of national and regional media ownership among political and business elites.

Individuals could criticize the government publicly or privately and discuss matters of public interest. Some nongovernmental organizations (NGOs), however, maintained the chilling effect on public expression engendered under former President Duterte continued.

The practice of “red-tagging” – labeling human rights advocates, unions, religious groups, academics, environmental activists, Indigenous peoples organizations, and media organizations as fronts for or clandestine members of insurgent and other political groups – continued, albeit at lower levels. In May the Supreme Court ruled that red-tagging and related statements and claims made individuals or groups a target of vigilantes, paramilitary groups, and state agents, and that they thus constituted threats to a person's right to life, liberty, or security. The legal implications of this ruling were unclear. Some labor leaders reported they no longer faced red-tagging, while others reported threats.

Per civil society groups, the practice was intended to silence criticism of the

government, intimidate opponents in local disputes, or provoke violence or legal action against political opponents. In September the National Union of Journalists of the Philippines reported 25 incidents of red-tagging but did not provide details.

Civil society groups expressed concern regarding implementation of the Anti-Terrorism Act of 2020, which some claimed was prone to abuse and could be used to restrict or bar common forms of speech or political activities. In January the Supreme Court issued a set of rules for persons seeking “judicial relief from their designation as terrorist (sic)” under the act or from a related asset freeze. The rules would allow claimants to address detention without judicial arrest warrants, surveillance orders, freeze orders, restrictions on travel, and other matters. In 2022 the Supreme Court declared unconstitutional the part of the law defining terrorism, deeming it “overbroad and violative of freedom of expression.”

Physical Attacks, Imprisonment, and Pressure

Journalists faced harassment, threats of violence, and violence from individual politicians, government authorities, and powerful private persons critical of their reporting. Physical attacks against journalists continued, and several cases from previous years remained unresolved.

Reporters Without Borders in its 2024 *World Press Freedom Index* noted that government-led targeted attacks and harassment against journalists

continued. In May the self-confessed gunman in the October 2022 killing in Manila of radio broadcaster Percival “Percy Lapid” Mabasa was sentenced to up to 16 years in prison. Mabasa’s was the most high-profile murder of a journalist under the Marcos administration. Bureau of Corrections Director General Gerald Bantag, also charged in the murder standing arrest warrant, remained at large as of November. In June the Court of Appeals denied Bantag’s petition to dismiss his arrest warrant.

In May the NGO Center for Media Freedom and Responsibility released its findings on the state of media freedom and reported 19 cases of surveillance from July 2022 to April 2024.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

News organizations generally were not subjected to official censorship, but journalists and media watchdogs alleged several instances of government interference. Media nonetheless generally remained free, active, and able to express criticism of the government, despite the chilling effect caused by killings of and attacks on journalists, red-tagging, and political and nongovernmental pressure.

On July 16, the Court of Tax Appeals acquitted Maria Ressa, CEO of the *Rappler* news outlet, of the fifth and final tax evasion charge leveled against her during the Duterte administration. At one point, *Rappler*, Ressa, and

other staff were subjected to at least 11 criminal complaints – most related to taxes and alleged foreign links – and at least 10 arrest warrants were issued against Ressa from 2019 to 2021. As of July *Rappler* no longer faced charges; however, Ressa was awaiting a Supreme Court decision on her 2022 appeal of an online libel conviction.

Red-tagging by nongovernment actors continued.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the rights of workers, except for the military, police, short-term contract employees, and some foreign workers, to form and join independent unions, bargain collectively, and conduct strikes; it prohibited antiunion discrimination and required reinstatement of workers fired for union activity. The law placed several restrictions on these rights. There were threats and violence against trade union leaders.

Laws and regulations provided for the right to organize and bargain collectively in both the private sector and in corporations owned or controlled by the government. The law prohibited organizing by foreign national or migrant workers unless a reciprocity agreement existed with the workers' countries of origin specifying that migrant workers from the Philippines were permitted to organize unions there. The law also barred

temporary or outsourced workers and workers without employment contracts from joining a union. The law required the participation of 20 percent of the employees in the bargaining unit where the union sought to operate; the International Labor Organization (ILO) called this requirement excessive.

The law subjected all labor and employment disputes to mandatory mediation/conciliation for one month. If mediation failed, the union could issue a strike notice. For a private-sector strike to be legal, unions had to provide advance strike notice (30 days for collective bargaining matters and 15 days for unfair labor practice matters), respect mandatory cooling-off periods, and obtain approval from a majority of members. The law provided for a maximum prison sentence of three years for participating in an illegal strike; no such cases occurred during the year. The law also permitted employers to dismiss union officers who knowingly participated in an illegal strike.

The law prohibited government workers from joining strikes under penalty of automatic dismissal. Government workers could file complaints with the Civil Service Commission, which handled administrative cases and arbitrated disputes. Government workers could also assemble and express their grievances on the work premises during nonworking hours.

The secretary of the Department of Labor and Employment, and in certain cases the president, could intervene in labor disputes by assuming

jurisdiction and mandating a settlement if either official determined the strike-affected company was vital to the national interest. Essential sectors included hospitals, the electric power industry, water supply services (excluding small bottle suppliers), air traffic control, and other activities or industries as recommended by the National Tripartite Industrial Peace Council. These definitions of essential services were broader than international standards.

In most cases, the government respected freedom of association and collective bargaining and made some efforts to enforce laws protecting these rights. The Department of Labor had general authority to enforce laws on freedom of association and collective bargaining. The National Labor Relations Commission's labor arbiter could also issue orders or writs of execution for reinstatement that went into effect immediately, requiring employers to reinstate the worker and report compliance. Allegations of intimidation and discrimination in connection with union activities were grounds for review by the quasi-judicial commission as possible unfair labor practices. If there was a definite preliminary finding that a termination could cause a serious labor dispute or mass layoff, the labor secretary could suspend the termination and restore the status quo pending resolution of the case.

Penalties under the law for violations of freedom of association or collective bargaining laws were regularly applied against violators.

Antiunion discrimination, especially in hiring, was an unfair labor practice and carried criminal or civil penalties that were, however, not commensurate with analogous crimes; generally civil penalties were favored over criminal penalties.

Administrative and judicial procedures were subject to lengthy delays and appeals.

The Tripartite Industrial Peace Council served as the main consultative and advisory mechanism on labor and employment for organized labor, employers, and government on the formulation and implementation of labor and employment policies. It also acted as the central entity for monitoring recommendations under and ratifications of ILO conventions.

The Department of Labor, through the Industrial Peace Council, was responsible for coordinating the investigation, prosecution, and resolution of alleged violence and harassment of labor leaders and trade union activists pending before the ILO.

Workers faced several obstacles in exercising their rights to freedom of association and collective bargaining and the right to strike. For example, some labor unions criticized Labor Department guidelines on labor contracting and subcontracting for not limiting forms of regular, short-term temporary contractual and subcontractual work, which the unions reported could be used to undermine worker protections. Some employers reportedly chose to employ workers who could not legally organize, such as

short-term contract and foreign national workers, to minimize unionization and avoid other rights accorded to “regular” workers.

Unions claimed local political leaders and officials who governed Special Economic Zones explicitly attempted to frustrate union organizing efforts by maintaining union-free or strike-free policies. Unions also claimed the government stationed security forces near industrial areas or Special Economic Zones to intimidate workers attempting to organize and alleged companies in the zones used frivolous lawsuits to harass union leaders. Local zone directors claimed exclusive authority to conduct their own inspections as part of the zones’ legislated privileges. Employers controlled hiring through special zone labor centers. For these reasons, and in part due to organizers’ restricted access to the closely guarded zones and the propensity among zone establishments to adopt fixed-term, casual, temporary, or seasonal employment contracts, unions had little success organizing in the Special Economic Zones. The Department of Labor did not have data on compliance with labor standards in the zones.

Threats and violence against union members occurred. On April 10, labor rights activist William Lariosa was allegedly abducted by security personnel (reportedly soldiers of the 1003rd Infantry Brigade, police from a nearby town, and other persons described by witnesses as wearing berets) operating in the area against New People’s Army (NPA) guerrillas. Some of the latter reportedly seized Lariosa, covered his head with a jacket, and

forced him into a white, unlicensed Toyota. Lariosa was, since 1996, a union organizer for the labor group Kilusang Mayo Uno. According to his family, prior to the abduction, Lariosa was repeatedly surveilled and visited at home by security officials. Efforts by his family and associates to locate him at local military bases and through the courts were fruitless. As of November, his whereabouts and status remained unknown.

Unions in General Santos, Davao, Cagayan De Oro, Cebu, Laguna, and Manila reported being placed under police surveillance. Labor leaders were also arrested and charged with terrorism-related crimes because of their alleged support for the NPA. Labor leaders and organizers also reported being “red-tagged.”

Forced or Compulsory Labor

See the Department of State’s annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for minimum wages for all sectors depending on industry and location. Official minimum wages were below the poverty line. By law the standard workweek was 48 hours for most categories of industrial workers and 40 hours for government workers, with an eight-hour-per-day

limit. The law mandated one day of rest each week. The government mandated an overtime rate of 125 percent of the hourly rate on ordinary days, 130 percent on special nonworking days, and 200 percent on regular holidays. There was no legal limit on the number of overtime hours that an employer could require.

The wage and hour law did not cover many workers, since wage boards exempted certain employers such as distressed establishments, new business enterprises, retail and service establishments with fewer than 10 employees, and establishments affected by natural calamities.

Domestic workers worked under a separate wage and benefit system that laid out minimum wage requirements significantly lower than regular minimum wage requirements, payments into social welfare programs, and mandated one day off a week. While there were no reliable recent data, informed observers believed two million or more persons were employed as domestic workers, with nearly 85 percent being women or girls, some as young as age 15.

Violations of minimum wage standards were common. Many firms hired employees for less-than-minimum-wage apprentice rates, even if there was no approved training in their work. Complaints regarding payment below the minimum wage and nonpayment of social security contributions and bonuses were particularly common at companies in Special Economic Zones.

Occupational Safety and Health

The law provided for a comprehensive set of appropriate occupational safety and health (OSH) standards. The government proactively identified unsafe working conditions. Regulations for small-scale mining, for example, prohibited certain harmful practices, including the use of mercury and underwater, or compressor, mining. The law provided for the right of workers to remove themselves from situations that endangered health or safety without jeopardy to their employment.

Wage, Hour, and OSH Enforcement

The Department of Labor's Bureau of Working Conditions monitored and inspected compliance with wage, hour, and OSH laws in all sectors, including workers in the formal and informal sectors, and nontraditional laborers. It also inspected Special Economic Zones and businesses located there.

The government did not effectively enforce minimum wage and hour laws. Penalties for noncompliance with minimum wage rates and for OSH violations were commensurate with similar crimes, such as fraud or negligence. Penalties were sometimes applied against violators. Fines for OSH violations were used for OSH training sessions and related programs.

In addition to fines, the government used administrative procedures and moral suasion to encourage employers to rectify violations voluntarily. The number of labor inspectors who monitored and enforced the law, including

by inspecting compliance with core labor and occupational safety standards and minimum wages, was insufficient, particularly in rural areas, and impeded the Department of Labor's ability to investigate labor law violations effectively, especially in the informal sector and in small- and medium-sized enterprises. Inspectors had the authority to conduct unannounced inspections and initiate sanctions.

The Department of Labor implemented its Labor Laws Compliance System for the private sector. The system included joint assessments, compliance visits, and occupational safety and health investigations. Department of Labor inspectors conducted joint assessments with employer and worker representatives; inspectors also conducted unannounced compliance visits and OSH investigations. The Department of Labor and the ILO operated an information management system to capture and transmit data from the field in real time using mobile technology.

Following a deficiency finding, the Department of Labor could issue compliance orders that could include a fine or, if the deficiency posed a grave and imminent danger to workers, suspension of operations. The Department of Labor's Bureau of Working Conditions did not close any establishments during the year. Such closures required prior notification and hearings.

There were also gaps in the law, and the government enforced contracting and occupational safety and health laws inconsistently. Various labor

groups criticized government enforcement efforts, in particular the Department of Labor's lax monitoring of OSH standards. OSH violations were common in the wholesale and retail industries.

Media also reported problems in the implementation and enforcement of the domestic workers' law, including a tedious registration process, an additional financial burden on employers, and difficulty in monitoring employer compliance.

The government and several NGOs worked to protect the rights of the country's overseas citizens, most of whom were Philippine Overseas Employment Agency contract or temporary workers. Although the agency registered and supervised domestic recruiter practices, authorities often lacked sufficient resources to provide complete worker protection overseas. The Overseas Worker Welfare Administration assisted overseas workers in filing grievances against employers via its legal assistance fund. The fund covered administrative costs that could otherwise prevent overseas workers from filing grievances. Covered costs included fees for court typing and translation, visa cancellation, and contract termination.

The government fined and brought criminal charges against domestic recruiting agencies found guilty of unfair labor practices.

Nearly 40 percent of the country's workforce was in the informal sector. They were covered by labor law but did not receive social benefits like

workers in the formal economy.

c. Disappearance and Abduction

Disappearance

Although long-term enforced disappearances were rare, kidnappings were common and predominantly committed for criminal purposes, including ransom and forced labor in illicit criminal activities, including cyberscamming. Terrorist groups were implicated in many kidnappings in Mindanao.

The AFP's Center for Law of Armed Conflict reported no cases of enforced disappearance attributed to or implicating the armed forces from January to July. The CHR, however, reported 12 cases involving 16 persons who were victims of abduction and disappearance from January to July. Six members of the PNP and two nonstate actors were implicated in the cases.

Some kidnappings involved People's Republic of China (PRC) nationals. In June four police officers were arrested for kidnapping for ransom three PRC and one Malaysian national and later killing two of the victims. The police officers were also charged with robbery and car theft.

The law allowed family members of alleged victims of disappearances to compel government agencies to provide statements in court regarding what they knew concerning the circumstances surrounding a disappearance (or

an extrajudicial killing) and the victim's status.

Evidence of a kidnapping or killing required the filing of charges, and police generally opened investigations. In many cases, however, evidence and documentation were unavailable, not collected, or insufficient to support charges.

Prolonged Detention without Charges

Security forces detained individuals, including juveniles, arbitrarily and without warrants on charges other than terrorism, especially in areas of violent unrest.

In March the PNP filed administrative charges against three police officers for the illegal, warrantless arrest of film director Jade Castro and three other individuals, and for their subsequent 40 days' detention. Castro and his companions were arrested for allegedly burning a vehicle in Quezon Province. The local court that handled the case ruled the circumstances of the arrest did not meet those required for warrantless arrests. Also in February, 10 police officers were dismissed for their alleged involvement in the September 2023 unlawful arrest and detention of four PRC nationals from an online scam operation center in Paranaque City. Those arrested were detained without being informed of their offense and denied the right to counsel. Aside from unlawful arrest, the officers were also found guilty of theft and planting evidence.

The CHR investigated 31 alleged cases of unlawful arrest and illegal detention involving 49 individuals from January to July, of which 11 were perpetrated by members of the PNP, three by members of the military, two by local government officials, one by a prison officer, and one by a nonstate actor.

Lengthy pretrial detention was a problem due largely to the slow and ineffective justice system. The great majority of prisoners in Bureau of Jail Management and Penology (BJMP) facilities were pretrial detainees; the balance were convicted criminals serving less than three-year sentences. The Department of Justice issued reforms to speed time to trial, but the impact of these reforms was not seen as of December. Pending cases were not evenly distributed among the courts, which resulted in some severely overburdened courts. Large jails employed paralegals to monitor inmates' cases, prevent detention beyond the maximum sentence, and assist with efforts to reduce overcrowding. The BJMP helped expedite court cases to promote speedy disposition of cases. Through this program, authorities released 52,189 inmates from BJMP jails from January to July. In some cases, detainees spent longer awaiting trial than the maximum sentence for their alleged crime, often extending over many years.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom*

Report at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibited torture, and evidence obtained through its use was inadmissible in court. According to the CHR, however, members of the security forces and police were accused of routinely abusing and sometimes torturing suspects and detainees. Common forms of abuse during arrest and interrogation reportedly included electric shock, burning with cigarettes, and suffocation.

As of July, the CHR investigated 25 cases of alleged torture involving 33 victims. Of those, seven involved members of the PNP, three local government officials, two corrections officers, one drug enforcement officer, one member of the military, and one nonstate actor.

Police and other security forces reported finding evidence of physical abuse during raids on multiple so-called offshore gaming operations that catered

primarily to PRC clients and operated as covers for online scam operations, human and drug trafficking, and other crimes. During congressional hearings in June, employees rescued from online scam operations in Pampanga and Tarlac described incidences of physical abuse and torture in the facilities. In November President Marcos issued an executive order immediately banning all such operations; as of December, the government was in the process of closing them down.

Human rights groups expressed concern regarding the contribution of corruption to abuses committed by the PNP and other security forces and noted little progress in implementing and enforcing reforms aimed at improving investigations and prosecutions of suspected human rights violations. The national police's institutional deficiencies and the public perception that police corruption was endemic continued.

Witnesses to abuses were often unable to obtain protection. The Office of the Ombudsman reported that witnesses often failed to come forward or to cooperate in police abuse or corruption cases. This reticence sometimes followed pressure on witnesses and their families or arose from an expectation of compensation for their cooperation.

Impunity was a significant problem in the security forces, particularly in the PNP for abuses committed during the Duterte administration, as reported by local and international human rights organizations such as Amnesty International and Human Rights Watch. A police officer was convicted in

June for the murder of a father and son in a 2016 drug war operation. Three other police officers were convicted for extrajudicial killings since the start of the drug war in 2016.

The AFP's Center for Law of Armed Conflict reported that, from January to June, it had not received any allegations against members of the military for alleged extrajudicial killings, forced disappearances, or other rights abuses.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings>.

Child Soldiers

The use of child soldiers, primarily by terrorist and antigovernment organizations, was a problem, especially in parts of Mindanao affected by persistent insurgency-related violence. The AFP's Center for Law of Armed Conflict rescued three children, one from Lanao del Norte and two from Negros Occidental, used as soldiers by communist insurgent groups from January to June. UNICEF monitored the recruitment and use of children in armed conflicts and the release of child soldiers. Government reporting mechanisms on child soldiers provided inconsistent data across agencies and regions, especially in conflict-affected areas, which made it difficult to

evaluate the problem's scale. The NPA claimed it did not recruit children as combatants but admitted it recruited and trained children for noncombat purposes, such as cooking. The Moro Islamic Liberation Front claimed it did not use children as armed combatants, but a representative of the front acknowledged in a July meeting with the International Committee of the Red Cross and diplomatic community representatives that the group used children to cook and run materiel to the front lines during active firefights.

Child Marriage

The law imposed a total ban on marriage for persons younger than 18; anyone younger than 21 was also required to have parental consent. Under the law, any person who arranged the marriage of a child could be imprisoned for up to 10 years and fined. The penalty would increase to up to 12 years and a larger fine if the violator were the child's parent or guardian. Recent data were unavailable.

Under Muslim sharia law, however, boys could marry at 15, and girls when they reached puberty (no age specified). There were no legal penalties for forced and child marriage. Records from sharia district courts showed some Muslim girls were married as young as age seven.

c. Protection to Refugees

The government cooperated with the Office of the United Nations High

Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern. As of June, UNHCR reported 948 recognized refugees in the country.

Provision of First Asylum

No comprehensive legislation provided for granting refugee status or asylum. The Department of Justice's Refugee and Stateless Persons Protections Unit determined which applicants qualified as refugees in accordance with an established, accessible system that NGOs judged to provide basic due process.

d. Acts of Antisemitism and Antisemitic Incitement

An estimated 2,000 persons of Jewish heritage lived in the country, almost all foreign nationals. There were no reports of antisemitic incidents.